

Durvesh v. State of U.P. & 4 Others

High Court of Judicature at Allahabad · Division Bench · 18 January 2023 · WRIT - C No. 35571 of 2022 · **Writ disposed of; theft-dues recovery withdrawn as issued without any final assessment order.**

HEADNOTE

A recovery citation for alleged theft of electricity cannot stand where no final assessment order is in existence. On respondent no. 2's admission, the Division Bench recorded that the citation dated 20 September 2022 for Rs. 8,61,555 had been issued without any such order, that it had been withdrawn by a communication of 14 January 2023 to the ADM (Revenue), Etawah, and that disciplinary proceedings had been drawn against two Executive Engineers and one worker for lapses in the procedure of the U.P. Electricity Supply Code, 2005. The Court approved, as likely to reduce controversy over whether unauthorised use was made, that officer's circular requiring compliance with Clauses 6.8 and 8.1 and directing the checking team to take at least two photographs of the site, prepare a video film, and show it to the consumer. It recorded the Additional Advocate General's assurance that the Chairman, UPPCL, would be asked to have other distribution companies follow the same instructions, and hoped that cases in which proper procedure had not been followed would be reviewed and the recoveries withdrawn without waiting for the Court. Because the impugned recovery had already been withdrawn, the writ was disposed of with no further direction. The Court did not decide the theft allegation, or whether a fresh assessment could still be made.

FACTUAL SUMMARY

Durvesh challenged a recovery citation dated 20 September 2022, issued by respondent no. 5, for Rs. 8,61,555 as electricity dues in a case of theft of electricity. He said he had been served neither a notice of the assessment proceeding nor the assessment order, and that the office of respondent no. 3 did not give him a copy when he asked.

Called upon to file a personal affidavit, respondent no. 2 admitted that the recovery had been issued although no final assessment order was in existence. The affidavit also stated that disciplinary proceedings had been drawn against two Executive Engineers and one worker for lapses under the Electricity Supply Code, 2005, that the recovery had been withdrawn by a letter of 14 January 2023 to the ADM (Revenue), Etawah, and that a circular had been issued to subordinate officers to comply with clauses 6.8 and 8.1, including a direction to take two photographs and a video of a reported unauthorised-use site and show them to the consumer.

REUSABLE CONSTRUCTIONS

1. A recovery citation for dues in a case of theft of electricity cannot be issued when no final assessment order is in existence. Issuing it is a lapse in the procedure of the U.P. Electricity Supply Code, 2005; the citation is to be withdrawn, and officers found prima facie guilty may be proceeded against departmentally. ¶ [order of 18.1.2023](#)
2. Where the assessment procedure of the Supply Code has not been followed, the licensee ought to review those cases and withdraw the recovery without waiting for the High Court to intervene. ¶ [order of 18.1.2023](#)
3. Instructions that, where unauthorised use of electricity is reported, the checking team take at least two photographs of the site and prepare a video film, and show them to the consumer on a date convenient to the parties, were approved as reducing controversy over whether unauthorised use was made, and as fit to be followed by other distribution companies through the Chairman, UPPCL. The approval is of administrative instructions issued to secure compliance with Clauses 6.8 and 8.1; it does not hold that the Code itself makes photography or videography mandatory. ¶ [order of 18.1.2023](#)

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

QUESTION

Can a recovery citation for electricity dues in a case of theft be maintained when no final assessment order is in existence?

HOLDING

No. Respondent no. 2 admitted that the recovery citation dated 20.09.2022, for Rs. 8,61,555 in a case of theft of electricity, had been issued although no final assessment order was in existence. That was treated as a lapse in the procedural requirements of the Electricity Supply Code, 2005. Disciplinary proceedings had been drawn against two Executive Engineers and one worker found prima facie guilty, and the recovery had been withdrawn by a communication to the ADM (Revenue), Etawah, on 14.01.2023. The Court held that, the recovery having already been withdrawn, no further direction was required, and hoped that respondent no. 2 would review every case in which proper procedure had not been followed and withdraw recovery without waiting for the Court to intervene. ¶ order of 18.1.2023

QUALIFIER

The Court did not itself quash the citation; the licensee had already withdrawn it. No direction was issued for, or against, a fresh assessment of the petitioner.

FLAG Unnumbered order-sheet: listings of 9.12.2022 (Sunita Agarwal and Vipin Chandra Dixit, JJ., adjourned to serve respondents 2 and 3) and 4.1.2023 (service recorded), the affidavit direction of 11.1.2023, and the disposing order of 18.1.2023, both by Manoj Kumar Gupta and Vikram D. Chauhan, JJ. The cause is pleaded as theft. The circular, as recited, told officers to comply with 'Sections 6.8 and 8.1' of the Code; the absence of a final assessment order is keyed to Clause 8.1. The Electricity Act is not cited.

HOLDING-UNIT · UP-2005::6.8

checking-team photographs and video where unauthorised use is reported

QUESTION

What checking practice did the Court approve, alongside compliance with Clauses 6.8 and 8.1, where unauthorised use of electricity is reported?

HOLDING

Respondent no. 2's circular instructed subordinate officers to comply with Clauses 6.8 and 8.1 of the Electricity Supply Code, 2005 while making assessments. The Court singled out as noteworthy the directions that the checking team take at least two photographs of the site where unauthorised use is reported, prepare a video film, and show it to the consumer on a date convenient to the parties. In the Court's opinion those instructions will go a long way towards reducing controversy as to whether unauthorised use was made, and should also be followed by other distribution companies. Shri M.C. Chaturvedi, Additional Advocate General, assured the Court that he would communicate that aspect to the Chairman, UPPCL, so that the guidelines are followed by all distribution companies. ¶ order of 18.1.2023

QUALIFIER

Judicial approval of the licensee's circular, with an assurance that the Chairman, UPPCL, would be informed. Not a mandamus against other licensees, and not a holding that the Code makes photography or videography a condition of a valid assessment.

FLAG The order's spelling is 'unauthorize use'. The photographs-and-video direction is stated for a site where unauthorised use is reported, and is keyed to Clause 6.8; the same circular also required compliance with Clause 8.1. The Court did not hold that want of photographs vitiates an inspection.

PRINCIPLE TAGS

no-recovery-without-final-assessment-clause-8.1(b) Respondent no. 2 admitted that the theft-dues recovery citation of 20.09.2022 had been issued although no final assessment order was in existence. The recovery was withdrawn on 14.01.2023, and disciplinary proceedings were drawn against two Executive Engineers and one worker for the procedural lapse. ¶ order of 18.1.2023

checking-team-photographs-and-video-shown-to-consumer The Court approved the circular's direction that, where unauthorised use is reported, the checking team take at least two photographs and a video film of the site and show them to the consumer, and recorded an assurance that the Chairman, UPPCL, would be asked to have other

distribution companies follow it. The approval accompanies compliance with Clauses 6.8 and 8.1; it does not make photography a Code requirement. ¶ [order of 18.1.2023](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD COMMITTED THEFT OF ELECTRICITY, AND WHETHER RS. 8,61,555 WAS RIGHTLY QUANTIFIED

The recovery was withdrawn for want of a final assessment order. The Court did not try the theft allegation or the amount. ¶ [order of 18.1.2023](#)

NOT DECIDED — WHETHER A FRESH ASSESSMENT MAY STILL BE MADE AGAINST THE PETITIONER AFTER FOLLOWING CLAUSES 6.8 AND 8.1

Once the recovery stood withdrawn the Court issued no further direction. It neither reserved nor barred a fresh proceeding against Durvesh. The hope that other defective recoveries be reviewed and withdrawn is addressed to respondent no. 2 generally. ¶ [order of 18.1.2023](#)

NOT DECIDED — WHETHER NOTICE OF THE ASSESSMENT PROCEEDING AND A COPY OF ANY ASSESSMENT ORDER HAD BEEN SERVED ON THE PETITIONER

Paragraph 11 of the writ, recorded in the order of 11.01.2023, asserted non-service and refusal of a copy by the office of respondent no. 3. The disposing order rested on the admission that no final assessment order existed, and did not return a finding on service. ¶ [order of 11.1.2023](#); [order of 18.1.2023](#)